

February 24, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 12716
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT Specification 3AAX cylinders containing chlorine. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304a(a)(2) in that a DOT Specification 3AAX cylinder is not authorized for chlorine except as specified herein.
5. BASIS: This special permit is based on the application of Air Liquide America Corporation dated March 26, 2004 submitted in accordance with § 107.109.

February 24, 20066. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chlorine	2.3	UN1017	N/A, Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 3AAX cylinder that is permanently mounted on a motor vehicle (semitrailer). Cylinders must be: in conformance with Weldship Corporation drawing no. 9800161 Rev. 0 on file with the Office of Special Permits and Approvals (OHMSPA); and equipped with a packless type valve with a non-perforated diaphragm as shown on CEODEUX Ultra High Pure Equipment Technology S.A. Plan No. 4535 on file with the OHMSPA. Additionally, each cylinder must be in accordance with the following requirements:

Minimum service pressure: 2400 psig
Maximum outside diameter: 22 inches
Minimum wall thickness: 0.536 inch
Maximum cylinder length: 480 inches
Maximum water capacity: 5700 pounds
Maximum filling density: 125 percent

b. TESTING -

(1) Each cylinder must be retested and inspected in accordance with § 180.205 as specified for DOT Specification 3AAX cylinders.

(2) After emptying and prior to each refilling of the prescribed cylinder, and while the packaging contains a residue of chlorine, each cylinder must be inspected and leak tested in accordance with Air Liquide Procedure for Leak Checking Chlorine Tube Trailers dated March 4, 2002 on file with the OHMSPA. Any cylinder showing evidence of leakage in excess of one part per million (ppm) must not be refilled.

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c. OPERATIONAL CONTROLS -

(1) No more than four cylinders may be permanently mounted on a motor vehicle. Cylinders must be mounted horizontally, in accordance with Weldship Corporation drawing P02201 Rev. 0 on file with OHMSPA.

(2) Manifolding of the prescribed cylinders is not authorized.

(3) Each cylinder must have its entire product load discharged at a single location.

(4) Each cylinder must be marked in letters and numbers at least 2 inches high on a contrasting background "DOT-SP 12716".

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Drivers must have been instructed as to the necessary safeguards and proper procedures in the event of an accident, fire or leak involving the hazardous materials covered by this special permit.

c. Air Liquide America, L.P. must inform CHEMTREC, CANUTEC and Chlorine Emergency Plan responders that Chlorine Institute Emergency Kits will not work with the CEODEUX valves on the motor vehicles authorized under this special permit.

d. Packages permanently marked 'DOT-E 12716', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life the package or until the special permit is no longer valid. Packages marked after October 1, 2007 must be marked 'DOT-SP 12716'.

e. Shipping papers displaying 'DOT-E 12716' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Taylor", is written over a faint circular stamp.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Pipeline and Hazardous Materials Safety
Administration, Department of Transportation, Washington, D.C.
20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit
are permitted. Any alteration of this special permit is
prohibited.

PO: CWFreeman/sln/kah